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Thirty Seventh Marhoom Dr. A. M. A. Azeez Oration – 2010

'National Identity and Resettlement Issues of Muslims'

Devanesan Nesiah Ph.D. (Harvard), C.C.S. (Retd.)



It is my pleasure and privilege to deliver the Marhoom Dr. A. M. A. Azeez Oration on this 37th anniversary of his passing away. Born on October 4, 1911 to a distinguished family of Vannarponnai, Jaffna he enjoyed and gained much from his schooling at Vaidyeshwara Vidyalayam and at Jaffna Hindu College. His family was rooted in Jaffna and eminent in the fields of Commerce, Law, Politics, and Religious and Community Service. Marhoom Dr. Azeez was very conscious of those roots and appreciative of the culture of Jaffna and her inhabitants. In particular he imbibed the traditions of scholarship, discipline, unostentatious life style, commitment to religious and family values, and dedication to duty and community service, from his school days through to the end. He was a brilliant orator and writer in both English and Tamil. His daughter Marina has quoted her father:

"I now feel thrice-blessed that I did go to (Vaidyeshwara) Vidyalaya and nowhere else. My period of stay, February 1921 to June 1923, though pretty short quantitatively was extremely long qualitatively. It was at Vidyalaya that I became first acquainted with the devotional hymns of exquisite beauty and exceeding piety for which Tamil is so famed through the ages and throughout the world".

Marhoom Dr. Azeez's culture and career had many facets. He initially set out on an academic career as a historian and proceeded to Cambridge on a Government Scholarship for post-graduate studies, but returned early to enter the Ceylon Civil Service. Even among the very distinguished company of Civil Servants his extra-ordinary talents were quickly recognized and appreciated. World War 2 had led to severe food shortages. The very young Azeez, then barely five years in service, was hand picked by Minister of Agriculture D. S. Senanayake to head the Emergency Kachcheri established at Kalmunai expressly to boost food production in that region. Azeez's skills and dedication ensured that Minister D. S. Senanayake's initiative succeeded brilliantly. Neither the Minister nor the people of Kalmunai, overwhelmingly Muslim and Tamil, ever forgot his services. In the course of that assignment the young Azeez gathered an enormously valuable portfolio on the Muslims of the East, their wants and problems, hopes and aspirations, and also their unrealized potential; he also maintained excellent rapport with the Tamil people of the East and especially with Swami Vipulananda.

The young Azeez seemed to be set for a very rapid rise in the Ceylon Civil Service. But after 13 years of very distinguished service he made a momentous decision to abandon that service and become Principal of Zahira College – a move then widely regarded as a massive and impulsive sacrifice. It was indeed an enormous sacrifice, but a deliberate one. Marhoom Dr. Azeez took Zahira, already built up under the leadership of T. B. Jayah to fresh heights to become one of the leading national schools of the island. It was a Muslim school with a difference in that it attracted a diverse array of staff and students including Buddhists, Hindus and Christians. He encouraged the students to not only successfully complete their secondary schooling but also advance further into tertiary and professional education. During his tenure increasing numbers from Zahira College gained University admission. Zahira College also excelled in a variety of sports and other curricular activities.

Marhoom Dr. Azeez was a leader in public life within and outside the school. Among his most successful initiatives was the establishment of the Ceylon Muslim Scholarship Fund (which transformed the prospects of many young Muslims), the Colombo based Y.M.M.A Conference linking and supporting all YMMAs in the island, and the Beruwela based Jamiah Naleemiah, a Muslim heritage and research institution. He also joined the UNP and served a term with great distinction as a Senator. He was in much demand as a speaker and wrote profusely in English and in Tamil. He had made many valuable contributions to seminars, locally and overseas, as well as to publications in local and overseas journals.

Though 10 years junior to my father (Mr. K. Nesiah, an eminent educationist and lecturer in Education at the University of Ceylon) in age, they were very close friends and held each other in high regard. They were together in the Jaffna Youth Congress that was politically dominant in the North in the 1920s. Marhoom Dr. Azeez was a frequent visitor to our home, particularly during the period when he was Principal of Zahira College and thereafter. He often came to discuss matters relating to education with my father before he spoke or wrote on the subject. In turn,

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my father developed a deep appreciation of the intellect, scholarship, culture and values of Marhoom Dr. Azeez and gained an understanding of the political dilemmas confronting the Muslim community. Their friendship remained strong till Marhoom Dr. Azeez passed away prematurely in 1973 at the age of 62.

Judge M. A. M. Hussain, another close and long standing friend of our family, was the founder President of the Haji A. M. A. Azeez Memorial Committee, since renamed as the Dr. A. M. A. Azeez Foundation, again with Judge Hussain as President for some years. Judge Hussain never tired of arguing that the top national leadership of the Muslim community needs to have a political base in a region with a very strong Muslim presence, i.e. in the East or in the North. This was long before the East based SLMC was founded under his inspiration. He would argue that it is only a political party with roots in Muslim areas that would be best equipped to project a national Muslim identity and to design a programme to fit the contours of the concerns of the broad mass of the Muslim population of Sri Lanka. Prior to the emergence of the SLMC, the national Muslim leadership did not have strong roots in the East or North but were elected from predominantly non-Muslim electorates. The situation now is very different in that even those Muslim leaders who were not born in the East have now established strong political links to that region. Marhoom Dr. Azeez had quit active politics much earlier and had passed away before the SLMC was founded, but had played a major role in defining the identity of the Muslims and publicly articulating their concerns.

Marhoom Dr. Azeez consistently proclaimed, on the one hand, that the Muslims of Sri Lanka were a community distinct from all others and, on the other, that the mother tongue of the Muslims was Tamil and that this gave them and the Tamils a common interest in opposing linguistic discrimination. In fact Marhoom Dr. Azeez's position was that it was the Muslims who were the worst affected by the policy of Sinhala only since they need to master four languages, viz. Tamil, Arabic, Sinhalese and English and, in the case of the Malays, the Malay language too. Marhoom Dr. Azeez was willing to go along with the compromise adopted on 18 December 1955 at the Joint Conference of the All Ceylon Muslim League and the All Ceylon Moors Association to accept Sinhalese as the state language but "with due official recognition given to Tamil and English and provided that the fundamental rights of the minorities in respect of religion, culture, language, etc. are incorporated within the Constitution."

In the event the Official Language Bill did not provide for any such safeguards. When the Bill was presented in the Senate, Marhoom Dr. Azeez gave a very long, sad and passionate speech arguing against it but got no support from his UNP colleagues. He proclaimed prophetically that:

"... the abandonment of Tamil by the Muslims of the South and Central Ceylon would almost cut them off from the Muslims of the East and North Ceylon; ... would deny them the benefits of the Muslim-Tamil literature produced in South India; ... would make it difficult for the theological institutions in Ceylon to function effectively ... and the abandonment of Tamil would definitely destroy the solidarity of the community and considerably weaken its political power".

Sadly, the 24 Senators present voted by ethnicity; the 19 Sinhalese voted for the Bill whereas the 4 Tamils and the sole Muslim, Marhoom Dr. A. M. A. Azeez, voted against it and quit the UNP on this issue. This too was a sacrifice but, again, not an impulsive one. Acting impulsively would have been out of character. The voting in the House of Representatives underlined his fateful prophesy. The Muslims MPs representing North East electorates voted against the Bill; the other Muslim MPs voted for.

Marhoom Dr. Azeez was in a happier mood over two years later when the Tamil Language (Special Provisions) Bill was presented in the Senate. Dr. Azeez spoke enthusiastically and voted in favour of that Bill, the provisions of which, he asserted, should have been included in the Official Language Bill presented nearly 2½ years earlier. He had studied the Bill very carefully and identified several weaknesses but expressly refrained from moving any amendments to avoid delaying it; he expressed his confidence that the defects identified would be corrected early. In the course of his speech he quoted with approval Prime Minister Nehru of India who particularly warned against the communalism of the majority, as reported in the Morning Times of 12 May 1958:

"The communalism of the minority was dangerous, but it petered out sometime or other. But the communalism of the majority is far more dangerous than the communalism of the minority because it wears the garb of nationalism. We have this communalism ingrained in us, and it comes out quickly at the slightest provocation, and even decent people began to behave like barbarians when this communalism is roused in them".

Marhoom Dr. Azeez also quoted with approval the then Indian Minister of Scientific Research and Culture, Humayun Kabbir on the subject of group identity at a seminar on National Unity versus Group Isolation as reported in the periodical Quest:

"Minorities are generally more sensitive about the retention of their separate character. Majorities do not generally insist on such retention, because they know that greater uniformity is likely to lead to the acceptance of their way of life by the minority rather than vice versa. This is one of the main reasons why religious minorities are so anxious to preserve their special traditions and characteristic culture even at the cost of estranging the majority. The same fear is behind the passion exhibited in recent times over the question of the languages of India.

It is easy for the majority to press its own point of view under the guise of national interest and dismiss the fears of the minority groups as parochial. One may certainly argue that the larger national interest should always prevail over the interest of a section or group. Unfortunately, however, the majority has often a tendency of identifying the national interest with its own interest.

There need not be any dishonesty or hypocrisy in such identification, for it is a common human failing – in India and elsewhere – to regard one's own point of view".

A definitive feature of the culture of Marhoom Dr. Azeez is his love and mastery of the Tamil language and traditions, extending even to aspects of Saivism. As noted by Mr. Khalid M. Farouk, Secretary of the Dr. A. M. A. Azeez Foundation:

"... he had a deep knowledge of Tamil literature and he would quote the Kural, the masterpiece of the poet-philosopher Thiruvalluvar, with the best of pundits. Marhoom Azeez's speeches were fluent and in pure Tamil, and were a treat to listen to. In later years his routine every morning was to listen to Hindu devotional songs (thevarams) over the radio. He relished the beauty of Tamil in these songs, and reading Tamil in ola leaves..."

On the devolution issue, though he was never a federalist, Dr. Azeez saw the need to move away from the prevailing over-centralization of government. He repeatedly touched on this point in his Senate speeches. In his Address of Thanks to the Throne Speech of 1953, he stated, "but the problem of how to integrate the system of Kachcheris with type of Local Government and the Central Government we have is a problem which, I feel, has not been solved at all". He also kept referring to the difficulties confronting large departments such as Health and Education on account of Colombo centred decision making. Unfortunately, Marhoom Dr. Azeez was not in active politics when, in due course, the devolution issue surfaced as the principal national question.

A sector in which the Muslim identity has been transformed in recent decades is education. Marhoom Dr. Azeez was one of those responsible for that transformation. When he accepted appointment as Principal of Zahira College, the transformation was yet in its earliest stages. Muslims in Sri Lanka had been distrustful of modern education under British colonial rule. It was only in 1891 that a few Muslim leaders including I. L. M. Abdul Azeez, Siddi Lebbe and Wappichi Marikar, urged by the Egyptian political leader Arabi Pasha (then here in exile) founded the Colombo Muslim Educational Society which then established in 1892 Sri Lanka's first modern Muslim school, later renamed Zahira College. Christian, Buddhist and Hindu schools had been flourishing for several decades, and Sinhalese, Tamil, Burgher and many other communities had gained a good head start over the Muslims.

During the period that Marhoom Dr. Azeez was Principal of Zahira College (1948 – 1961) that gap was substantially bridged. His contribution was not only as a school Principal but also as a liberal minded and highly respected Muslim leader who urged Muslims, male and female, to take to modern education in a big way. On the subject of education for girls and the status of women, his daughter Marina has written:

"The education of girls was something he was very interested in, even at a time when Muslim girls did not have any form of schooling. In the 1920s, he encouraged my aunt (his cousin) to sit her London Matriculation Examination. It was a happy day for him when she became the first Muslim girl in Jaffna (possibly in the whole Island) to pass this examination. Needless to say I was also encouraged in the pursuit of knowledge.

At a time when Muslim girls, especially those of well-to-do families, stopped attending school when they attained age, my father would not hear of me staying at home and learning to sew and to cook... I was keen to follow a varsity career and thanks to my father's

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insistence I was able to enter the University Campus at Peradeniya... my years spent at the Peradeniya Campus were the happiest of my student life, especially because I was given the freedom to choose my friends and take part in campus activities.

The time I entered my teens was one when the Purdah system was rigidly followed... My father did not approve of this "purdah garb". I remember my mother, always in favour of compromise, wore the black coat but discarded the head-dress and merely covered her head with the saree. Many Muslim ladies in those days followed this style. As for me, I did not have to wear the coat or cover my face".

The Ceylon Muslim Scholarship Fund that Dr. Azeez helped to establish played a significant part in promoting the education of Muslims; the Jamia Naleemiah, which too was founded with the involvement of Marhoom Dr. Azeez, has an impressive record in research and education. As the first Muslim to enter the Ceylon Civil Service, and in numerous other capacities, as well as through his exemplary life style, he was a splendid role model admired by Sri Lankans of all ethnic categories. Jaffna University, at its very first Convocation, conferred on him an honorary LL.D. A commemorative stamp was issued by the state in his memory. Dr. Azeez has been listed among the 100 Great Muslim Leaders of the 20th century by the Institute of Objective Studies, New Delhi.

I have already focused on Marhoom Dr. Azeez's deep and passionate concern for the religious and linguistic aspects of the identity of the Muslims of Sri Lanka as evident in what he spoke, wrote and did. The national identity of any community is also tied up with many other factors including its livelihood profile and the pattern of land occupied by the population. The Muslims of Sri Lanka have been stereotyped as a community of traders. There was some historical basis for this stereotype but that was many centuries ago. The early Muslim immigrants were mostly traders who married local Sinhalese and Tamil women and settled down; some of the Malays came in as mercenaries in Dutch times. The Muslim livelihood profile has evolved away from excessive dependence on trade to a range of other occupations. In many urban and even rural centres, Muslims are yet very visibly in trade. But where the Muslims have a dominant presence over an extended area, particularly in the districts of Ampara (excluding Ampara AGA division), Batticaloa, Trincomalee and Mannar, their employment profile is not much different from those of the Sinhalese and Tamils. Large segments of the Muslims are now in agriculture, fishing and diverse other occupations and, thanks to the services of Marhoom Dr. Azeez and others, in the elite professions too.

Attempts have been made to dislodge Muslims from economic sectors dominated by them, beginning with the 1915 anti-Muslim riots, and yet continuing from time to time. Such attempts damage not only the Muslim community but also the richness of the diversity of the Sri Lankan population. Any development in the employment profile of a community must be voluntary and generated from within its own population.

Regarding land too, the pattern of population distribution has been evolving and will continue to evolve. It is important to avoid forcing any changes through state designed land settlement schemes, which have been a major feature of Sri Lanka for over seven decades. This is continuing. As Dr. A. C. L. Ameer Ali, a student of Zahira College under Marhoom Dr. Azeez, set out in his Memorial Oration a few years ago:

"... one should also (consider) the loss (the Muslims) have incurred due to the government's land policies under false pretensions. For example, the failed sugar plantation in Ampara in the nineteen sixties, the Digawapi Buddhist cultural precincts scheme in the 1990s, the so called archaeological excavation in Pottuvil to resurrect an ancient Buddhist temple in post-2000, and the designation of 600 acres in Muttur for a Special Economic Zone, are all projects that have intentionally or unintentionally taken away lands belonging to Muslims. One should not forget that it was the loss of land more than the threat to their language that actually provoked the Tamils to cry for a separate state".

There have been many massacres and much ethnic cleansing over the decades in this island, of Sinhalese, Tamils and Muslims. The Muslims had been singled out by the LTTE for ethnic cleansing in the form of massacres and expulsions for some years beginning in the late 80s. Sadly, the massacres and expulsions have not been adequately inquired into. The perpetrators have not been punished and the victims have not been substantially helped. Little or no action has been taken to resettle and rehabilitate those evicted. On this issue I have spoken and written frequently. In the absence of meaningful steps taken by the state or by the leaders of the other communities, Muslim civil society leaders have established The Citizens' Commission on the Expulsion of Muslims from the North by the LTTE in October 1990. The latest figures supplied by the Rural Development Foundation revealed that despite shortcomings on the part of the authorities, close to one half of the expelled Muslims have now returned, though most of them have not been fully rehabilitated. Much needs to be done not only by the state but also by Muslim and Tamil leaders and people at all levels. It may be noted that a few such initiatives have already occurred. In the early days of Menik Farm, Muslim groups from Kattankudy and elsewhere went there in large numbers to provide food for the IDPs. Virtually every Tamil leader consulted by the Commission has expressed unqualified support for the return of the evicted Muslims. Such sentiments need to be translated into action on the ground.

I serve on the Citizens' Commission and spoke in Puttalam on 20th October 2010 on the occasion of the commemoration of the 20th anniversary of that sad event. I will end by quoting extracts from that speech in Puttalam:

"Sri Lanka has been increasingly the scene of much ethnic violence. The Northern Muslims are the victims of the earliest large scale act of ethnic cleansing in our history. Close to 80,000 persons, constituting the entire Muslim population of the five Northern Districts of Jaffna, Mannar, Vavuniya, Mullaitivu and Kilinochchi were summarily expelled from the province by the LTTE on one fateful day in October 1990 at a few hours notice. The details of the constraints imposed on the victims varied from location to location depending on the degree of brutality of the local LTTE leadership, but nowhere were those evicted able to sell, transfer or otherwise secure or dispose of their property or to take with them cash or other moveable possessions. The operation was carried out so quickly and with such ruthless efficiency that there was little or no resistance. The state failed to intervene. Sadly, the protests of the national leadership, Tamil and non-Tamil, and of the national and the international community were muted.

The task of reversing ethnic cleansing is difficult but necessary. As I see it, the main task of this Commission is to push for and facilitate the resettlement of displaced Muslims back in the locations from which they were evicted. The displaced population needs to be motivated and helped to return. The conditions, facilities and inducements must therefore be attractive and the obstacles to return must be minimized. Particular attention needs to be paid to promote acceptance of the return on the part of the local communities among whom the returnees will resettle.

To permit any act of ethnic cleansing to stand would amount to withholding justice from the victims, to rewarding the perpetrators, to encouraging such acts in the future and, above all, to perpetuating a national crime and humiliation... No family or individual can be compelled to return to an inhospitable environment. The focus therefore should be on promoting voluntary return. This requires designing and executing the programmes in close interaction with and the participation of both the displaced communities and local community into which they are to return. The remedies must be seen by all concerned as a step towards the restoration of the honour, not only of the victims and the perpetrators, but also of those who stood by and let the eviction occur. This Commission could play a lead role in spreading this message in relation to all acts of ethnic cleansing throughout our island".

The Jaffna in which Marhoom Dr. Azeez had his childhood and entire schooling was not only multi-religious and multi-ethnic but also a model of religious and ethnic harmony. That was true of the Mannar and Batticaloa districts that I served in the 60s and, in fact through most of the North and East despite much communal violence elsewhere. It was a model that Marhoom Dr. Azeez strove to sustain from his childhood till his end. Piece by piece that model has now been dismantled almost everywhere. Let us on this very special occasion dedicate ourselves to the re-construction of that model of a just and peaceful nation. The first step in that process would be the reversal of all ethnic cleansing everywhere in the island and the re-settlement of all displaced populations, Sinhalese, Tamil, Muslim and other, in the lands from which they were displaced.

Finally, it has been a privilege to have known as a family friend Marhoom Dr. Azeez, surely one of the great Sri Lankans of the 20th century and to be invited to deliver this address on this very special occasion. Thank you.

The Speaker

Dr. Devanesan Nesiah had his schooling at St. John's College, Jaffna and S. Thomas' College Mount Lavinia. He secured his B.Sc. (Mathematic) at the University of Ceylon in 1958 and entered the Ceylon Civil Service in 1959. In due course he secured his MA Economics at Sussex University and MPA and Doctorate at Harvard University. He has served as Government Agent in Mannar (1965-68), Batticaloa (1968-71) and Jaffna (1981-84). After his retirement in 1995 he has served as a Member of the Public Service Commission and as Chair/Member of several national Commissions and Committees. Among his many publications are his book titled "Discrimination with Reason? The Policy of Reservations in the US, India and Malaysia", Oxford University Press, 1997. He is now a Consultant at the Centre for Policy Alternatives and the Commissions he now serves on include the Press Complaints Commission and The Citizens' Commission on the expulsion of Muslims from the North by the LTTE in October 1990.

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